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of Maritime Affairs

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SECURITY ADVISORY: 04/2008

This Security Advisory supersedes 'Security Advisory: 6/2007'

SUBJECT: U.S. Coast Guard Revises Security Advisory Regarding Ports Not Maintaining Effective Anti-Terrorism Measures.

Reference: (a) USCG Port Security Advisory (5-08) - ATTACHED

Dear Owner/Operator:

Update: The U.S. Coast Guard issued the attached *Port Security Advisory (5-08)* on 11 April 2008 describing the required actions to be taken by ships that call at ports in countries that the US has determined do not maintain effective anti-terrorism measures. Cuba is the most recent country the Coast Guard has determined to be not maintaining effective anti-terrorism measures. The advisory is relevant to the countries listed and has no connection or affect on vessels that may be registered in those countries. In an effort to provide more consistency the USCG has modified the conditions of entry for vessels, regardless of flag, arriving from ports not maintaining effective anti-terrorism measures. In particular, the requirement to provide for armed guards while vessels are in the U.S. may be waived upon verification that appropriate measures were taken while the vessel was in the countries listed. All vessels that visited the countries listed in paragraph B of the USCG Advisory (with exceptions noted) during their last five port calls will be boarded or examined at sea by the Coast Guard to ensure required actions were taken. Failure to properly implement the actions listed in paragraph C.1 through C.5 of the attached advisory may result in delay or denial of entry into the United States.

Vessel security actions: Effective immediately ALL Liberian registered vessels while in ports of the countries noted in the attached USCG Advisory (5-08) shall implement measures per ships security plan equivalent to Security Level 2 and execute the required actions listed in section C of the attached advisory.

Note: No vessel shall operate at a Security Level lower than that of the port facility. Additionally, the Master has the overriding authority to increase the Security Measures of the vessel at any time to protect the safety and security of the vessel

Questions regarding this Advisory should be directed to Security Department at +1 703 251 2490 or security@liscr.com.

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Port Security Advisory (5-08)

A. Background:

The Maritime Transportation Security Act of 2002 (MTSA) has mandated that the United States Coast Guard evaluate the effectiveness of anti-terrorism measures in foreign ports and provides for the imposition of conditions of entry on vessels arriving to the United States from countries that do not maintain effective anti-terrorism measures (MTSA, 46 USC § 70108).

The Coast Guard has identified three additional port facilities in Indonesia that are excepted from the conditions of entry. Furthermore, the requirement for armed guards while in the U.S. will be made on a case by case basis by the Coast Guard after considering the security compliance history of the vessel.

B. Countries Affected:

The Coast Guard has determined that ports in the following countries are not maintaining effective anti-terrorism measures:

Cuba (Effective April 18, 2008)

Cameroon (with the exception of the Ebome Marine Terminal, the Quai GETMA (LAMNALCO Base) facility, and the Société Nationale de Raffinage (SONARA) terminal)

Equatorial Guinea (with the exception of the ports of Ceiba, K-5, Luba, Punta Europa, and Zafiro)

Guinea-Bissau

Indonesia (with the exception of Banjarmasin Port; Belawan Multi-Purpose Terminal; Caltex Oil Terminal Dumai; Jakarta International Container Terminal; Pelindo II Conventional Terminal Jakarta; Pertamina Unit Pengolahan II Dumai; Pertamina Unit Pengolahan V Balikpapan; PT Badak Bontang Natural Gas Liquefaction; PT Indominco Mandiri Bontang [Bontang Coal Terminal]; PT Multimas Nabati Asaha; PT Pelabuhan Indonesia I Cabang Dumai; PT Pertamina Unit Pemasaran III Jakarta; PT Pupuk Kaltim

MORE

Bontang; PT Terminal Petikemas Surabaya; Semarang International Container Terminal; and Senipah Terminal Total E&P Indonesia Balikpapan; **British Petroleum Arco Arjuna, Newmont Nusa Tenagara, and Chevron Santan Marine Terminal**)

Iran

Liberia

Mauritania (with the exception of the Chinguetti Terminal)

Syria

C. Actions Required by Vessels Visiting Countries Affected:

All vessels arriving to the United States that visited the countries listed in paragraph B (with exceptions noted) during their last five port calls must take actions 1 through 5 listed below while in the countries listed in paragraph B as a condition of entry into U.S. ports:

1. Implement measures per the ship's security plan equivalent to Security Level 2;
2. Ensure that each access point to the ship is guarded and that the guards have total visibility of the exterior (both landside and waterside) of the vessel. Guards may be:
 - provided by the ship's crew, however, additional crewmembers should be placed on the ship if necessary to ensure that limits on maximum hours of work are not exceeded and/or minimum hours of rest are met, or
 - provided by outside security forces approved by the ship's master and Company Security Officer.
3. Attempt to execute a Declaration of Security;
4. Log all security actions in the ship's log; and
5. Report actions taken to the cognizant U.S. Coast Guard Captain of the Port prior to arrival in the U.S.

Vessels that visited the countries listed in paragraph B (with exceptions noted) during their last five port calls will be boarded or examined at sea by the Coast Guard to ensure the vessel took the required actions. Failure to properly implement the actions listed in paragraph C.1 through C.5, may result in delay or denial of entry into the United States.

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D. Actions Required by Vessels in U.S. Ports:

Based on the findings of the Coast Guard boarding or examination at sea, the vessels subject to the conditions of entry in paragraph B **may** be required to ensure that each access point to the ship is guarded by armed security guards and that they have total visibility of the exterior (both landside and waterside) of the vessel while in U.S. ports. The number and location of the guards must be acceptable to the cognizant U.S. Coast Guard Captain of the Port. For those vessels that have demonstrated good security compliance and can document that they took the measures called for in C.1. through C.4. above, the armed security guard requirement will normally be waived.

E. Countries Subject to Additional Port State Control Targeting:

Vessels arriving from the following countries remain subject to increased port state control targeting, including at sea boardings:

Democratic Republic of the Congo

While not required as a condition of entry, if a vessel takes the steps outlined in paragraph C 1 through 5, the vessel's security posture will be considered and reflected in the scope, intensity and duration of the Port State Control measures. Taking these steps does not guarantee vessels will not be subject to additional measures.